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California schools may soon phase out ultra-processed foods. Here's what that means

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Ultra-processed foods — a recent target of both U.S. Health Secretary Robert F. Kennedy Jr. and California Gov. Gavin Newsom — could soon be phased out of school meals in California if proposed legislation moves forward.

Assembly Bill 1264, authored by Assembly Member Jesse Gabriel, D-Encino, is slated for a vote in the Senate Appropriations Committee on Friday. If it passes, it will go before the full Senate. It has already passed the Assembly. The last day for each house to pass bills is Sept. 12.

The bill seeks to define "particularly harmful" ultra-processed foods by 2026, and require schools to begin phasing them out of breakfasts and lunches starting in 2028 — and be totally rid of them by 2035.

The proposal is the latest effort by lawmakers and regulators at the state and federal levels to reduce Americans' consumption of ultra-processed foods, or UPFs, which have been linked to higher risk of several cancers, obesity, type 2 diabetes, heart disease and early death.

Newsom in January issued an executive order directing state agencies to recommend ways to limit the harms associated with UPFs.

And the FDA is considering a proposed rule that would require nutrition labels to appear on the front of packaged foods — many of which are UPFs — to help consumers quickly see the amounts of added sugar, sodium and saturated fat and potentially avoid UPFs.

UPFs were also named in RFK Jr.'s "Make America Healthy Again" report issued in May as a main source of chronic illnesses in children. However, UPFs were reportedly mostly left out of a second MAHA report, which was expected to be released this month but has not yet been made public. The second report is expected to spell out the administration's policy plans to address the nation's health problems.

Here's what you need to know about ultra-processed foods:

What are ultra-processed foods?

UPFs are commercially produced foods that include ingredients you wouldn't typically find in a home kitchen, and are often high in sugar, salt and saturated fat. They often contain additives like flavor enhancers, emulsifiers and colors.

UPFs are considered Category 4 foods in the four-tiered NOVA food classification system, which was developed by Brazilian researchers to sort and study foods based on how they were processed. The system was introduced in 2009 and is considered the gold standard for scientists to study and classify processed foods.

Category 1 includes unprocessed or minimally processed foods, such as fresh fruits and vegetables, beans, meat and fish. Category 2 includes processed culinary ingredients like vegetable oils, butter, sugar and salt. Category 3 includes processed foods made from ingredients in Category 1 and Category 2, such as canned vegetables, freshly baked bread, cheese and cookies.

Some of the most common ultra-processed foods are sugar-sweetened beverages like soda and energy drinks, and processed sandwich meats.

Why are ultra-processed foods concerning?

UPFs have been studied for about 20 years, which is considered relatively new for nutrition research. But, "we're getting to a tipping point where we're starting to understand the fact that UPFs are largely unhealthy for us," said Allie Reimold, a postdoctoral scholar at UC Davis' Department of Human Ecology who researches food policy.

Studies show that when people are given unlimited access to either ultra-processed foods or unprocessed foods that were matched in nutrient content, people who ate UPFs ate more calories, carbohydrates and fat — but not more protein — and gained more weight.

"These foods are engineered to be highly palatable so there's more of a propensity to overeat," Reimold said.

Eating UPFs is associated with increased risk of colorectal, colon, breast, ovarian and pancreatic cancers. It is also linked to higher risk of heart disease and stroke, poor gut health and mental disorders like depression and anxiety.

Are we eating more ultra-processed foods?

The availability of UPFs in the food system, and the amount of UPFs that Americans are buying and eating, is increasing. The proportion of U.S. adults' calorie intake that comes from UPFs has increased over the last 20 years, while the proportion that comes from minimally processed foods has decreased.

Federal health data estimates that about 53% of adults' calories and 62% of children's calories come from UPFs.

Are all ultra-processed foods unhealthy?

Research has found that the vast majority of UPFs, about 84%, are also high in nutrients of concern like sugar, salt and saturated fat — so it's likely that a majority of UPFs are considered unhealthy, Reimold said.

However, she said, some UPFs may fall into a gray area of potentially healthy, such as commercially baked whole grain bread, low-sugar yogurt and low-sodium veggie burgers.

Why focus on ultra-processed foods in schools?

"There are so many reasons why schools would be a good place," said Jennifer Falbe, an associate professor of nutrition and human development at UC Davis. "For children, schools are providing a large proportion of foods they're eating everyday, so it's an easy way to improve the diets of children in a setting where they're spending most of their time."

Childhood is also when lifelong dietary habits are formed, which makes schools a natural setting for policies that encourage healthier eating. Schools also already have to meet other nutrition standards for school meals, so they're not unfamiliar with these types of regulations.

A 2024 California law, also introduced by Gabriel, prohibits public schools from serving foods that contain six synthetic dyes by 2027. The dyes — Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3 — have been linked to behavioral and developmental issues in children.

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